



May 13, 2020

Dear Provider,

My name is Frank Maguire, M.D., and I am the Chief Network Officer at TriWest Healthcare Alliance. Our team at TriWest has been honored to serve the health care needs of our nation's Veteran and military community for the past 20 years. TriWest is privileged to continue this special work in your area, since we have been awarded the follow-on contract for Department of Veterans Affairs (VA) community care known as Community Care Network (CCN).

As a Navy Veteran and physician, I'm writing today because your skill, expertise and devotion have never been more needed. We are asking you to join us in caring for our nation's Veterans alongside VA. Simply sign the enclosed contract and return it to us.

More about TriWest and VA Care

I've been with TriWest since the company's original work in TRICARE at the side of the Department of Defense and have remained passionate about ensuring our nation's Veterans have the timely, quality health care they deserve. TriWest was founded in 1996 and has been on a mission to take care of our nation's heroes since inception. We will build upon that legacy and continue to meet the needs of Veterans with the partnership of dedicated providers like you.

Starting in 2013, VA contracted TriWest to help improve Veteran care across the country in response to the VA access to care crisis that surfaced years ago. TriWest administers the VA programs by building a network of community providers to assist VA when services are not available or timely within the VA's treatment facilities, sending authorizations, assisting with care coordination when needed, and paying claims.

Here are some additional facts you should know about TriWest:

- On average, over the past 12 months claims payment accuracy was above 96 percent.
- Veterans have been scheduled for 7.2 million initial Veteran appointments for care in the community.
- TriWest now receives more than 350,000 requests for Veteran care in the community per month.
- TriWest's network consists of 678,000 individual providers and over 1.3 million access points.
- TriWest handles approximately 850,000 calls per month.

I feel privileged to work with the caring, dedicated team of individuals at TriWest who assist our nation's Veterans. We are proud of the work we do together each and every day to serve those who have sacrificed so much for our country.

Will you join us?

The enclosed contract defines your contractual terms and reimbursement rates for CCN. To join our mission to care for Veterans, simply return the signed contract to us via email at providercontracting@triwest.com or by physical mail by using the self-addressed envelope enclosed.

If you are a provider in Colorado, Nevada please fill-out and return the applicable credentialing application and supplemental documents, which can be access at www.triwest.com/ccn-facility-credentialing for facilities and www.triwest.com/ccn-practitioner-credentialing for practitioners. An up to date CAQH ID number may be submitted for practitioners in lieu of a credentialing application. **Note: Contracts cannot be processed until credentialing documents are received and validated.**

If you have any questions about the contract or credentialing, feel free to email ccnprovider@triwest.com or call 866-286-4174. You may also visit <https://ccn.triwest.com> for more information on CCN. Thank you for your consideration and we hope you decide to partner with TriWest as we support the Community Care Network!

Respectfully,

A handwritten signature in black ink, appearing to read "Frank Maguire" followed by a stylized mark.

Frank Maguire, MD
Chief Network Officer
TriWest Healthcare Alliance
<https://ccn.triwest.com>

PROFILE SHEET

W9/LEGAL BUSINESS NAME	RadiantCare Physicians PLLC
FEDERAL TAX ID #	912018691
PRIMARY PHYSICAL ADDRESS LINE 1	4525 3rd Ave, Ste 100
PRIMARY PHYSICAL CITY	Lacey
PRIMARY PHYSICAL STATE	Washington
PRIMARY PHYSICAL ZIP	98503
PRIMARY CONTACT PERSON	J Doe2329
PRIMARY PHONE/ AUTHORIZATION FAX	3604128690 / 3604128970
PRIMARY EMAIL	heatherb@radiantcare.com
BILLING ADDRESS LINE 1	4525 3rd Ave, Ste 100
BILLING CITY	Lacey
BILLING STATE	Washington
BILLING ZIP	98503
BILLING CONTACT PERSON	J Doe2329
BILLING PHONE/FAX	3604128690 / 3604128970
BILLING EMAIL	heatherb@radiantcare.com

PROFESSIONAL SERVICES AGREEMENT

PARTIES

Regence BlueShield, a Washington Nonprofit Corporation, ("Network Subcontractor"), and RadiantCare Physicians PLLC, on behalf of itself and the hospital, ancillary providers, and individual providers to be credentialed under this Agreement hereto (collectively "Provider"). Network Subcontractor and Provider are referred to individually herein as a Party and collectively as the Parties.

EFFECTIVE DATE

This Agreement (the "Agreement") shall be effective on the date last signed on the signature page (the "Effective Date").

RECITALS

- A. Network Subcontractor has subcontracted with TriWest Healthcare Alliance Corp. ("TriWest") to establish a provider network for TriWest in conjunction with TriWest-administered health care programs.
- B. Provider is a duly licensed and/or certified, and in good standing with, the state in which they operate, and desires to participate in Network Subcontractor's network for TriWest-administered health care programs.

Therefore, the Parties agree as follows:

AGREEMENT

I. DEFINITIONS

Authorization, Preauthorization or Prior Authorization – Approval for requested services, procedures or admission that is required to be obtained prior to services being rendered.

Beneficiary – Any person eligible to receive Covered Services under the rules, regulations, policies and instructions of an applicable health care Program.

Clean Claim – A claim that contains all the required data elements necessary for adjudication without requesting supplemental information from the submitter.

Copayments - Deductibles, copayments and/or cost sharing amounts payable by a Beneficiary pursuant to the rules, regulations, policies and instructions of an applicable health care Program.

Covered Services - Services, items and supplies for which benefits are available in accordance with the rules, regulations, policies and instructions of an applicable health care Program.

Electronic Data Interchange (EDI) - The transfer of claims data in a standard electronic format.

Medically Necessary (Medical Necessity) - The appropriate and necessary treatment of the patient's condition, illness or injury emphasizing accepted standards of medical practice and applicable policy over cost or resource considerations.

Network Provider (Provider) - A provider who has contracted to render Covered Services under an applicable health care Program and any professional provider employed by the

contracting provider or billing for services under the contracting provider's Tax Identification Number (TIN).

Program – Any health care program administered by TriWest that is made part of this Agreement through the methods described in Section V of this Agreement.

Provider Handbook – A Program-specific set of comprehensive written guidelines, instructions, rules, policies and procedures as established and published by TriWest for participating Providers, as may be amended from time to time by TriWest in accordance with the provisions of this Agreement.

Reimbursement Rates - The rates set forth in Exhibit(s) applicable to a TriWest-administered health care program, which shall not exceed the amount payable by the health care program.

TriWest - TriWest Healthcare Alliance Corp. and, as applicable, its subcontractors.

II. TERM; TERMINATION

- A. Term - This Agreement shall commence upon the Effective Date and continue for an initial two year term. Thereafter, both Parties agree that the term of this Agreement shall automatically be extended for one-year periods unless terminated by either Party as permitted by this Agreement.
- B. Individual Provider Term – This Agreement shall become effective as to an Individual Provider's participation in the Program upon Individual Provider being fully credentialed by TriWest, but no sooner than the Effective Date.
- C. Termination without Cause - Either Party may terminate this Agreement at any time without cause upon at least ninety (90) days' prior written notice to the other Party. Participation of any individual Provider credentialed under this Agreement shall be automatically terminated on the date of disaffiliation of the individual Provider from Provider. Provider shall give TriWest at least ninety (90) days' prior written notice of the individual Provider's disaffiliation with Provider. An individual Provider terminating its participation shall not terminate this Agreement for the remaining Providers credentialed under this Agreement.
- D. Immediate Termination – Network Subcontractor shall have the right to immediately terminate this Agreement or a Provider's participation in a TriWest-administered Program upon written notice to Provider upon the occurrence of any of the events listed in the applicable Provider Handbook, including but not limited to loss of state or federal license, substandard liability insurance, non-compliance/falsification on credentialing application, or Provider is arrested on felony charges. Termination of an individual Provider pursuant to this Section II.D. will not terminate this Agreement for the remaining Providers credentialed under this Agreement.
- E. Material Breach - Either Party may terminate this Agreement for any material breach of this Agreement by the other Party, but only if that breach is not cured within thirty (30) days after written notice to the breaching Party.
- F. After termination of this Agreement, Provider shall notify any Beneficiaries that Provider is no longer a Network Provider and Provider shall cooperate with TriWest to ensure a smooth transition for Beneficiaries from Provider to another Network Provider.
- G. Services Upon Termination - Upon termination of this Agreement, Provider shall continue to provide Covered Services for specific conditions for which a Beneficiary was

under a Provider's care at the time of such termination so long as the Beneficiary retains eligibility, until the earlier of (1) completion of such services or (2) the assumption of such treatment by another Provider. Compensation for continued services authorized by TriWest shall be reimbursed at the amount allowed by the applicable health care Program's policy and Federal law.

III. PROVIDER'S RESPONSIBILITIES

- A. Provider agrees to treat Beneficiaries according to the terms and conditions of this Agreement and the terms and conditions set forth in the applicable Provider Handbook, as amended from time to time, and in accordance with all applicable laws, rules and regulations pertaining to the applicable program. Provider shall accept the terms of reimbursement and Reimbursement Rates set forth in the applicable exhibit as payment in full for Covered Services. This paragraph shall survive the termination of this Agreement.
- B. Provider agrees to be bound by, and comply with, the Provider Handbook applicable to each Program under which Provider provides Covered Services to a Beneficiary. The Provider Handbook can be found on the TriWest Provider Portal. The Provider Handbook may be amended from time to time by TriWest, provided that TriWest or Network Subcontractor will provide electronic or written notice to Provider of any material changes to a Provider Handbook no fewer than thirty (30) days prior to the effective date of any change. Such notice may be provided through a posting by TriWest or its designee on the TriWest Provider Portal or by any other method reasonably calculated to make the Provider aware of the amendment.
- C. Provider shall collect applicable Copayments from Beneficiaries. Provider may not bill Beneficiaries for any service that is not a Covered Service or disallowed. Except for applicable Copayments, Provider agrees that in no event (including, but not limited to, nonpayment, or breach of this Agreement by TriWest or Network Subcontractor, or TriWest's or Network Subcontractor's insolvency) shall Provider bill or collect for Covered Services from a Beneficiary. This provision shall survive termination of this Agreement. Provider shall not require payment from a Beneficiary for any excluded or excludable service and/or non-Covered Service that the Beneficiary received unless the Beneficiary has been properly informed that the services are excludable and/or not Covered Services and has agreed in advance of receiving the services, in writing, to pay for such services. The writing must be specific as to the details of the excluded or non-Covered Service. General agreements to pay, such as those signed by the Beneficiary at the time of service, are not sufficient to establish that the Beneficiary knew specific services were excluded or excludable or that the Beneficiary agreed to pay. This provision shall survive termination of this Agreement.
- D. All claims shall be submitted electronically pursuant to the claims submission rules and procedures found in the applicable Provider Handbook.
- E. Provider shall comply with all applicable federal, state and local laws, including but not limited to, confidentiality and security of Beneficiary medical records, Health Insurance Portability and Accountability Act (HIPAA), Americans with Disabilities Act, discrimination, and handicap accessibility. Furthermore, Provider warrants and certifies that Provider is in compliance with all federal, state and local laws applicable to Provider's business of providing health care services. Provider shall also comply with all regulations, rules, policies and procedures of the applicable Program, including any

materials published by the applicable health care Program and/or TriWest, including but not limited to the applicable Provider Handbook.

- F. Provider must comply with all credentialing requirements of the applicable Program, which are located in the applicable Provider Handbook.
- G. Immediately upon learning of any actions, policies, determinations or internal or external developments that may have a direct impact on any Provider's ability to perform its obligations under this Agreement, Provider shall notify TriWest in writing pursuant to the provisions set forth in the applicable Provider Handbook.
- H. Provider agrees that TriWest and its designee, including without limitation, Network Subcontractor, shall have access, upon demand and at reasonable times, to the books, records and papers of Provider relating to the health care services provided to Beneficiaries under an applicable Program, to the costs thereof, and to Copayments received by Provider from Beneficiaries for Covered Services. TriWest and its designee shall have the right to inspect, at reasonable times, Provider's facilities upon five (5) days' prior notice to Provider. Provider will provide adequate space to TriWest and its designee for the conduct of on-site inspections and reviews and shall cooperate in the conduct of such on-site inspections and reviews. Provider will photocopy and deliver to TriWest or its designee all information required for off-site review by TriWest of Provider's performance under this Agreement within thirty (30) days of a request by TriWest. This section shall survive termination of this Agreement.
- I. Provider shall maintain applicable licensure, Medicare certification, and be able to provide evidence of full accreditation by The Joint Commission or other accreditation organization approved by TriWest. Provider shall be responsible for ensuring its directly employed or contracted professional maintain applicable state license(s) that are free of any sanctions or restrictions.
- J. If Provider enters into any subcontracts with any subcontractors whereby such subcontractor assumes any of Provider's duties, responsibilities, or other obligations under this Agreement, Provider assumes full responsibility for credentialing, licensure, and professional liability insurance of said subcontractor and shall ensure that any such subcontracts require subcontractors to comply with the terms and conditions of this Agreement.

IV. PAYMENT TO PROVIDER

- A. TriWest will make best efforts to process Clean Claims within thirty (30) days of receipt and will make payment directly to Provider for Covered Services rendered by Provider to Beneficiaries in accordance with the terms of the Reimbursement Exhibit. Provider understands and agrees that neither Network Subcontractor nor TriWest is the insurer, guarantor or underwriter of the payment of benefits to Provider for the Programs, and agrees that Network Subcontractor shall not be responsible for payment of any claims submitted by Provider for Covered Services to Beneficiaries.
- B. All services must be authorized, Medically Necessary and provided at an inappropriate level of care. Provider must comply with applicable TriWest utilization review/payment management programs and procedures. TriWest may utilize a standard industry code review system in adjudicating claims and determining appropriate levels of coding.

- C. Provider understands and agrees that there may be payment adjustments, including retroactive adjustments, through the remittance or return of underpayments, overpayments, recoupments and adjustments for retroactive terminations or denials of coverage and claims payment determinations.

V. PARTICIPATION IN TRIWEST PROGRAMS

- A. Provider agrees to participate in all Programs that TriWest currently administers and in the future will administer. This Agreement will apply to Provider's participation in, and provision of Covered Services to a Beneficiary under, all such Programs. Provider further agrees that Provider's participation is governed by the Terms and Conditions applicable to each Program, which will be delivered at signing or at the time a Program is later added to this Agreement pursuant to Section V, paragraph C of this Agreement, and by the Provider Handbook for that program.
- B. Provider's participation in Programs currently administered by TriWest shall be effective upon the Effective Date set forth above.
- C. Additional Programs may be added to this Agreement upon at least thirty (30) days' prior written notice to Provider. Provider's participation in each additional Program will become effective upon the effective date set forth in the written notice provided to Provider unless Provider gives written notice to Network Subcontractor of Provider's rejection of the new Program prior to the effective date.

VI. GENERAL PROVISIONS

A. Modifications

Any modification of this Agreement, including any of its Addenda, proposed by Network Subcontractor shall be effective thirty (30) days after Network Subcontractor has given written notice to Provider of the modification and Provider has not notified Network Subcontractor in writing of Provider's rejection of the requested modification within that timeframe.

Modifications that are required because of legislative, regulatory or legal requirements, including without limitation any and all changes made to reimbursement or policies under a government program do not require the consent of Provider and will be effective immediately on the effective date thereof.

B. Applicable Law; Jurisdiction; Venue

This Agreement is governed by the laws in the State in which the Provider is located and applicable federal law. In the event of a conflict between State and federal law, federal law shall control.

C. Assignment

Except as permitted in this Agreement, neither Party may assign or transfer any right, benefit, obligation or duty under the terms of this Agreement to any third party without the prior written consent of the other Party and TriWest as the third party beneficiary,

except that Network Subcontractor may assign all or any part of this Agreement or any responsibilities hereunder to TriWest.

D. Network Subcontractor's Relationship to The Blue Cross and Blue Shield Association

Provider expressly acknowledges and understands that this Agreement constitutes an agreement between Provider and Network Subcontractor, that Network Subcontractor is an independent corporation operating under a license from the Blue Cross and Blue Shield Association (the "Association"), an association of independent Blue Cross and Blue Shield plans, permitting Network Subcontractor to use the Blue Cross and Blue Shield service marks in the State of Washington, and that Network Subcontractor is not contracting as the agent of the Association.

Provider further acknowledges and agrees that he/she/it has not entered into this Agreement based upon representations by any person, entity or organization other than Network Subcontractor and that no person, entity or organization other than Network Subcontractor shall be held accountable or liable to Provider for any of Network Subcontractor's obligations to Provider created under this Agreement. This paragraph shall not create any additional obligations whatsoever on the part of Network Subcontractor other than those obligations created under other provisions of this Agreement.

E. Network Subcontractor's Relationship to Provider

Provider further acknowledges and agrees that he/she/it has not entered into this Agreement based upon representations by any person, entity or organization other than Network Subcontractor and that no person, entity or organization other than Network Subcontractor shall be held accountable or liable to Provider for any of Network Subcontractor's obligations to Provider created under this Agreement. This paragraph shall not create any additional obligations whatsoever on the part of Network Subcontractor other than those obligations created under other provisions of this Agreement.

F. Dispute Resolution

1. In the event of any dispute arising under this Agreement, including without limitation if Provider believes that TriWest incorrectly denied, paid, or processed all or part of a claim and desires to obtain a review of the determination, Provider shall, within ninety (90) days of initial determination:

- a. submit a written request for review to TriWest; and
- b. include in the written request the items of concern regarding TriWest's determination and all additional information (including medical information) supporting Provider's belief that the denial was incorrect.

On the basis of the information supplied with the request for review, together with any other information available to it, TriWest will review its prior determination. Provider will be notified in writing of TriWest's decision and the reasons for the determination within sixty (60) days of TriWest's receipt of the request for review.

If Provider still believes that TriWest's determination is incorrect and/or has information that was not previously available for review when submitted to TriWest,

Provider shall direct a second request for review in writing to TriWest within sixty (60) days of receipt of the prior determination.

If Provider fails to submit any request for review within the timeframes set forth above, Provider shall be deemed to have waived its right to any remedies and to pursue the matter further. Without limiting the foregoing, in such instance, Provider may neither initiate a demand for arbitration pursuant to Section VI.E.3 of this Agreement nor pursue additional payment from the Beneficiary.

2. In the event that a dispute is not or cannot be resolved through the review process described above, each Party shall designate a member of its senior management to meet in an attempt to resolve the dispute.
3. The Parties agree that any disputes that cannot be resolved by the review process and senior management meeting shall be settled by final and binding arbitration. Arbitration shall be conducted under the Commercial Arbitration Rules of the American Arbitration Association. There will be a single arbitrator who shall be a retired federal judge. The arbitration decision shall be binding on both parties and shall be confidential. The arbitrator shall be bound by applicable law and shall issue written findings of fact and conclusions of law. The arbitrator shall have no authority to conduct or issue a decision with respect to any class arbitration or other claim brought by Provider on behalf of the general public under a statute or regulation that allows an individual to sue on behalf of the Attorney General or other federal, state or municipal actor, or in any other representative capacity. The arbitrator shall have no authority to award damages or provide a remedy that would not be available to such prevailing party in a court of law nor shall the arbitrator have the authority to award punitive damages. The cost of the arbitration shall be shared equally by the parties; provided that each party shall be responsible for its own attorneys' fees and costs.
4. A demand for arbitration pursuant to Section VI.E.3 must be filed within six (6) months of the date of the written decision rendered of the second request for review described in Section VI.E.1, notwithstanding any communication between the parties that may take place, or payment(s) that may be subsequently made related to the lack of action or alleged breach that is the subject of the dispute. Should the aggrieved party fail to file a demand for arbitration of the dispute within the timeframes set forth herein, the aggrieved party shall have no right to pursue any remedy with respect to such alleged breach, including, without limitation, initiation of any arbitration or civil action in state or federal court, and if the aggrieved party is Provider, Provider shall have no right to pursue payment of any disputed amounts from any Beneficiaries.
5. In the event the dispute resolution process is initiated as set forth above, any interest charges that would be applicable to claims payments will not accrue while resolution of the dispute is pending.
6. In the event that a judgment upon award in arbitration is not timely satisfied, such judgment may be entered in any court of competent jurisdiction, or application may be made to such court for a judicial acceptance of the award and enforcement, as the law of the state having jurisdiction may require or allow. Notwithstanding the foregoing, in the event a dispute is resolved pursuant to this Section VI.E., including without limitation any resolution due to a waiver of Provider's rights to further pursue a dispute, the subject of the dispute and its resolution shall be confidential.

G. Entire Agreement

This Agreement, including all attachments and Exhibits referenced in this Agreement, the applicable Provider Handbook as amended by TriWest from time to time in accordance with this Agreement, and the Terms & Conditions applicable to each Program are incorporated herein by reference, and constitute the entire understanding of the Parties and supersede all prior agreements between the Parties with respect to the same subject matter.

H. Mutual Indemnification

Provider shall hold harmless and indemnify and defend Network Subcontractor and TriWest for, from, and against any Provider-related claims, losses, damages, liabilities, costs, expenses or obligations arising out of or resulting from any Provider's wrongful or negligent conduct in the performance of this Agreement including, but not limited to, the provision of health care services by any Provider. Network Subcontractor shall hold harmless and indemnify and defend Provider for, from, and against any losses, damages, liabilities, costs, expenses or obligations arising out of or resulting from Network Subcontractor's wrongful or negligent conduct in the performance of this Agreement.

I. Relationship of the Parties

The relationship of the Parties is not and shall not be construed or interpreted to be a partnership, joint venture or agency. The relationship between the Parties is an independent contractor relationship.

J. Release

Provider acknowledges that a number of functions under this agreement will be performed by TriWest as set forth in this Agreement, including, but not limited to, claims adjudication and payment, and utilization review. Provider agrees to this delegation of functions to TriWest and further agrees that Network Subcontractor shall not be liable for payments under this agreement or for negligent or intentional wrongdoing or breach of this Agreement by TriWest. TriWest shall be solely liable for its actions and inactions and for all payments due to Provider under this Agreement.

K. Third Party Beneficiary

TriWest shall be a third-party beneficiary of this Agreement and shall be entitled to enforce Provider's obligations under this Agreement, and Provider shall be entitled to enforce TriWest's obligations under this Agreement. Except as expressly set forth in this Section VI.J, nothing in this Agreement, express or implied, is intended to confer any rights, remedies, claims, or interests upon a person not a party to this Agreement.

L. Trade Name Ownership

The Parties acknowledge that Network Subcontractor has the sole right to use, in Washington, the "Blue Cross" and "Blue Shield" trade names and service marks. Provider shall not use these names and marks without first obtaining Network Subcontractor's express written consent.

M. Waiver

There shall be no waiver of any term, provision or condition of this Agreement unless in writing and signed by both Parties.

N. Severability

If any provision of this Agreement is deemed illegal, unenforceable or in conflict with any law of a federal, state or local government having jurisdiction over this Agreement, the validity of the remaining sections shall not be affected. This includes, without limitation, a change in law or government program policy that is inconsistent with any provision of this Agreement. In addition Network Subcontractor shall replace the illegal, unenforceable or invalid provision(s) with a new provision(s) that, being valid, legal and enforceable comes closest to the intention of the Parties concerning the illegal, unenforceable or invalid provision(s). Network Subcontractor shall deliver to Provider, in writing, replacement language to effectuate the new provision(s). The replacement language shall specify its effective date and shall take effect without signatures of the Parties.

O. No Oral Modifications.

Except as set forth in Sections III.B, V, and VI.A above, this Agreement and any of its Addenda may be modified or amended only by written agreement executed by all Parties to this Agreement.

P. Construction

The Parties to this Agreement have both had an equal opportunity to review, discuss and negotiate the language and terms of this Agreement and therefore both Parties acknowledge and agree that there shall not be any presumption to construe ambiguous or disputed language against the drafter.

Q. Confidentiality

Provider, Network Subcontractor and TriWest each agree to keep strictly confidential all reimbursement rates and payment methodologies set forth in this Agreement and its Addenda, except that this provision does not preclude disclosure by TriWest to Beneficiaries of the method of compensation used by TriWest nor disclosure by Provider, Network Subcontractor or TriWest to government agencies as may be required by law or regulation. Provider, Network Subcontractor and TriWest agree that nothing in this Agreement shall be construed as a limitation of (i) Provider's rights or obligations to discuss with the Beneficiaries matters pertaining to the Beneficiaries' health regardless of coverage options or (ii) TriWest's rights or obligations with respect to subcontractors. Except as provided in this Section VI.P, any other release of the reimbursement rates set forth in this Agreement and its Addenda by Provider, Network Subcontractor or TriWest shall require the written permission of the others.

R. No Inducement to Refer

Nothing contained in this Agreement will require either Party or any physician of a Party to admit or refer any patients to the other Party's facilities. The Parties enter into this Agreement with the intent of conducting their relationship in full compliance with applicable federal, state and local law, including the Medicare/Medicaid Anti-Fraud and Abuse Amendments and the Physician Ownership and Referral Act (commonly known as the Stark Law). Notwithstanding any unanticipated effect of any of the provisions herein, neither Party will intentionally conduct itself under the terms of this Agreement in a manner to constitute a violation of these provisions.

S. Eligibility for Participation in Government Programs

Each Party represents that neither it, nor any of its management or any other employees or independent contractors who will have any involvement in the services or products

supplied under this Agreement, have been excluded from participation in any government healthcare program, debarred from or under any other federal program (including but not limited to debarment under the Generic Drug Enforcement Act), or convicted of any offense in 42 U.S.C. Section 1320a-7, and that it, its employees, and independent contractors are not otherwise ineligible for participation in federal healthcare programs. Further, each Party represents that it is not aware of any such pending action(s) (including criminal action) against it or its employees or independent contractors. Each Party shall notify the other Party immediately upon becoming aware of any pending or final action in any of these areas.

T. Time Limited

This Agreement is not an offer and will not be binding until fully executed by the Parties and accepted by TriWest. This Agreement should be returned to TriWest within one hundred eighty (180) days of Provider's receipt, or Provider should reach out to TriWest to determine whether this Agreement remains valid.

U. Authority on Behalf of Providers

Provider represents and warrants that it is duly authorized to negotiate and enter into this Agreement on behalf of each of the Providers identified in Exhibit 1.

Signature appears on last page

Each person signing this Agreement certifies that he/she has the appropriate authority to bind the respective Party. Intending to be legally bound, the Parties have executed this Agreement as of its Effective Date.

Network Subcontractor
Regence BlueShield, a Washington Nonprofit
Corporation

Provider
RadiantCare Physicians PLLC

By _____
Signature

By: _____
Signature

Signatory Name: John Partin
Signatory Title: Vice President
Date:

Signatory Name and Title (Printed)

Date: _____

Tax Id Number: 912018691
Specialty:

Whose main address is:
1800 Ninth Avenue
Seattle
WA 98101

Whose main address is:
4525 3rd Ave, Ste 100
Lacey
WA 98503

Fax:

Fax: 3604128970

Accepted by TriWest:

TriWest Healthcare Alliance Corp.

Signature Date

Frank E. Maguire, M.D.
Chief Network Officer

Whose main address is:
P.O. Box 42049
Phoenix,
AZ 85053
Fax # (866) 867-7925

COMMUNITY CARE NETWORK TERMS AND CONDITIONS

These Community Care Network Terms and Conditions ("T & C") are hereby incorporated by this reference into the Professional Services Agreement ("Agreement") by and between RadiantCare Physicians PLLC ("Provider") and Regence BlueShield, a Washington Nonprofit Corporation, ("Network Subcontractor"), as if fully set forth therein and is hereby effective _____. All defined terms used herein will have the same meanings set forth in the Agreement. Provider shall provide VA Beneficiaries (defined below) with the services described herein ("Services").

PURPOSE: The purpose of these T & C is to include Provider in a network to provide health care services to Department of Veterans Affairs (VA) Beneficiaries under the Community Care Network ("CCN") program and to establish the terms of participation in the CCN program. All of the terms of the Agreement remain in full force and effect and will apply to Provider's participation in the CCN program; provided that, in the event of a conflict between the terms of these T & C and the terms of the Agreement, the terms of these T & C shall govern. In addition to the terms and conditions of the Agreement, the following terms and conditions are applicable to the CCN program.

1. **DEFINITIONS:** For purposes of these T & C, the following definitions shall apply:
CCN Covered Services – Services, items and supplies for which benefits are available to VA Beneficiaries in accordance with the rules, regulations, policies and instructions of Veterans Administration and the Veterans Health Administration.

Prior Authorization – A required process through which VA reviews and approves certain medical services to ensure the medical necessity and appropriateness of care prior to services being rendered within a specified timeframe from a non-VA provider or additional resources in the community. This type of process requires a Prior Authorization be obtained "prior to" the specified service.

Emergency Care – Medical care required within twenty-four hours or less that is essential to evaluate and stabilize conditions of an Emergency/Emergent Need that if not provided may result in unacceptable morbidity/pain if there is significant delay in evaluation or treatment.

Emergency/Emergent Need – Conditions of one's health that may result in the loss of life, limb, vision, or result in unacceptable morbidity/pain when there is significant delay in evaluation or treatment.

TriWest Provider Handbook(Provider Handbook) – The set of comprehensive written guidelines, instructions, rules, policies and procedures for the CCN program, as established and published by TriWest for participating providers, and as may be amended from time to time by TriWest in accordance with the provisions of this Agreement.

Urgent Care – The medical services defined in 38 C.F.R. § 17.4600(b)(5) provided in an outpatient setting to treat acute or chronic illness or injury.

Veterans Health Administration (VA) – The division of the Department of Veterans Affairs that provides health care services and administers health care benefits for eligible Beneficiaries.

VA Beneficiary - Any person eligible to receive CCN Covered Services under the rules, regulations, policies and instructions of the VA.

2. Provider shall comply with all applicable laws, rules, regulations, and requirements, including all VA and TriWest rules, regulations, requirements, policies, and procedures, including the terms and conditions in the Provider Handbook, as amended from time to time, and shall treat VA Beneficiaries pursuant to the terms and conditions of both these T & C and the Agreement as applicable, and in accordance with the above referenced laws, rules, regulations, and requirements.
3. Provider shall provide and maintain policies of general and professional liability (malpractice) coverage in accordance with the terms and conditions set forth in the TriWest Provider Handbook.
4. Provider will use best efforts to complete training provided by VA or TriWest as specified in the Provider Handbook.
5. Provider understands and agrees that VA and TriWest have no obligation under the terms of this Agreement or the T & C to refer VA Beneficiaries to Provider for services.
6. Provider shall accept the terms of reimbursement and the Reimbursement Rates set forth in Exhibit 1 to these T & C as payment in full for the provision of CCN Covered Services to VA Beneficiaries. With the exception of covered Urgent and Emergent Care, Provider will be reimbursed only for services rendered to VA Beneficiaries that have a Prior Authorization by VA. In no event will Provider be paid for such services more than the amount payable by VA. All services must be Medically Necessary. Prior Authorization is not a guarantee of payment of a claim.
7. Provider will comply with the policies and procedures of the Provider Handbook for coverage and reimbursement for Urgent and Emergency Care, handling VA Beneficiary Other Health Insurance (OHI), VA Beneficiary co-pays and the influenza vaccine. Emergency Care Providers must notify VA, via secure email, secure fax or EDI, within seventy-two (72) hours of the Veteran self-presenting to their facility for care. If a Veteran has a Prior Authorization for care and during treatment it is determined the Veteran is experiencing an emergency, the treating Provider must seek emergency treatment immediately and notify VA immediately.
8. Provider will cooperate with TriWest's efforts to detect and prevent any activity that may constitute a compliance concern including fraud, waste, or abuse, following standards set by federal and state law and regulation. Claims that constitute fraud, waste or abuse will be denied.
9. Provider shall not bill VA Beneficiaries for any CCN Covered Services, including but not limited to VA Beneficiaries not appearing (e.g. "no show") for their appointment and treatments that were set up but never started, or any other administrative or service fees. Provider may collect payment from VA Beneficiaries for non-CCN Covered Services or services that were not Medically Necessary when Provider has entered into a written agreement with the VA Beneficiary in advance that notifies the VA Beneficiary of the services to be billed and of their payment responsibilities for those services in accordance with federal law and the Agreement.

10. Provider shall submit claims for CCN Covered Services on behalf of VA Beneficiaries in accordance with the claims submission rules and procedures as outlined in the TriWest Provider Handbook. Provider shall use best efforts to submit claims within thirty (30) days after the provision of the CCN Covered Services. No payment shall be made for a Clean Claim that is (i) submitted more than one hundred and eighty (180) days after the provision of the CCN Covered Services; or (ii) for services provided to VA Beneficiaries without a Prior Authorization by VA; or (iii) for services for VA Beneficiaries for which required medical reports have not been timely received by VA. Referring Provider will comply with Provider Handbook policies and procedures for referrals to ancillary providers.
11. In the event Provider believes that TriWest incorrectly denied, paid, or processed all or part of a claim and desires to obtain a review of the determination, Provider shall, within ninety (90) days of initial determination, submit a written request for review to TriWest. The request must be in writing and includes the items of concern regarding TriWest's determination and all additional information (including medical information) supporting Provider's belief that the denial or other TriWest determination was incorrect. All other dispute provisions specified in the Agreement remain in full force and effect.
12. Medical documentation, which includes both outpatient and inpatient records, must be returned in accordance with the policies and procedures set forth in the TriWest Provider Handbook.
13. Provider shall provide a VA Beneficiary with a copy of his or her medical record at no charge, to include narrative summary and other documentation of care, within ten (10) business days of the request.
14. Provider shall provide copies of medical records to TriWest within ten (10) business days of TriWest's request, to permit TriWest to conduct peer review, quality assurance and utilization review. TriWest will not pay, and Provider agrees to waive, any costs associated with the aforementioned submission of medical documentation, including but not limited to any copying or handling fees. TriWest will accept secure electronic medical records in a HIPAA compliant encrypted format.
15. Provider shall notify NetSub of any change in address, professional affiliation, tax identification number, licensure status, and/or staff privileges. Provider shall use best efforts to notify NetSub at least sixty (60) days prior to the date of the change, or at the earliest opportunity. If advance notification is not possible, Provider shall notify NetSub no later than fourteen (14) days after the effective date of the change.
16. Provider shall use best efforts to comply with the VA Beneficiary access standards specified in the Provider Handbook.
17. Provider shall not advertise the award of the Agreement or these T & C in its commercial advertising in such a manner as to state or imply that the Department of Veterans Affairs endorses a product, project or commercial line of endeavor.

18. **TERMINATION:** The T & C and Provider's participation in the CCN program may be terminated immediately upon Provider's failure to meet CCN program participation requirements. Either Party may terminate Provider's participation in the CCN program without cause upon ninety (90) calendar days' notice by any Party.
19. **SURVIVABILITY:** The obligations of Sections 2 and 8 of these T & C shall survive the termination of these T & C and the Agreement.

If any provision of these T & C is deemed illegal, unenforceable or in conflict with any law of a federal, state or local government having jurisdiction over these T & C, the validity of the remaining sections of these T & C and of the Agreement shall not be affected.

No Signature Required

Exhibit 1 to the CCN Terms and Conditions Reimbursement Rates

PROVIDER NAME: See Exhibit 2

TIN: See Exhibit 2

Provider acknowledges that this Exhibit 1 to the T & C sets forth the exclusive reimbursement it will receive for the provision of CCN Covered Services to VA Beneficiaries except for applicable Copayments.

Provider acknowledges that TriWest, as the third party administrator for CCN Program, is not the insurer, guarantor, or underwriter of the payment of Covered Service for VA Beneficiaries' benefits to the Provider. The services and payments made under this T & C shall be subject to all applicable federal laws and VA rules and regulations. In no event will Provider be paid more than the amount payable by VA. As federal law or regulation requires change in VA reimbursement or the methodology to compute any VA payments, this Exhibit is automatically updated to comply with said change. There will be no separate additional payment for services provided in any Health Professional Shortage Area (HPSA).

The terms of the T & C, specifically including this Exhibit, are applicable for all care that requires a Prior Authorization for VA Beneficiaries billed under the TIN(s) listed in Exhibit 2.

PROFESSIONAL SERVICES

Provider agrees to accept one hundred percent (100%) of the current applicable Medicare Payment Methodology, as updated from time to time, for the locale where the service is provided.

If a billed medical procedure or service is not payable under Medicare or is payable under Medicare but does not have established pricing at the national or local level, payment will be based upon the below hierarchy in order from first to last:

VA Fee Schedule

Billed Charges (inclusive of any agreed discount)

Provider agrees to accept a twenty-five percent (25.0%) discount off Provider's billed charge.

INFLUENZA VACCINE

For the administration of the influenza vaccine Provider agrees to accept thirty dollars (\$30) as the Reimbursement Rate.

Exhibit 2 to the CCN Terms and Conditions

Provider Listing

Provider Name	Tax ID Number
RadiantCare Physicians PLLC	912018691

Each person signing this Agreement certifies that he/she has the appropriate authority to bind the respective Party. Intending to be legally bound, the Parties have executed this Agreement as of its Effective Date.

Network Subcontractor
Regence BlueShield, Washington

Provider
RadiantCare Physicians PLLC

By
Signature

Signatory Name: John Partin
Signatory Title: Vice President
Date:

Whose main address is:
1800 Ninth Avenue
Seattle
WA 98101

Fax:

Accepted by TriWest:

TriWest Healthcare Alliance Corp.

Signature

Date

Frank E. Maguire, M.D.
Chief Network Officer

Whose main address is:
P.O. Box 42049
Phoenix,
AZ 85053
Fax # (866) 867-7925

By: 
Signature

Signatory Name and Title (Printed)

Date: 

Tax Id Number: 912018691
Specialty:

Whose main address is:
4525 3rd Ave, Ste 100
Lacey
WA 98503

Fax: 3604128970